

Court No. - 32

Case :- WRIT - C No. - 28814 of 2018

Petitioner :- M/S Meher Chandra Sewal Das
Rice Mill And Another

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Shivanand Mishra

Counsel for Respondent :- C.S.C.,Baleshwar
Chaturvedi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

Learned Standing Counsel prays for and is
allowed a week's time to seek instructions in the
matter.

Put up on 05.09.2018 as fresh.

Order Date :- 27.8.2018

IrfanUddin

Court No. - 32

Case :- WRIT - C No. - 28814 of 2018

Petitioner :- M/S Meher Chandra Sewal Das Rice Mill And Another

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Shivanand Mishra

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

This writ petition, inter alia, has been filed for the following reliefs;

"(a) Issue a writ order or direction in the nature of certiorari quashing the impugned notice dated 30-05-2018, issued by respondent no. 2 against the petitioners.

(b) Issue a writ order or direction in the nature of mandamus commanding the respondent no. 2 to consider and decide the objection/representation dated 29-12-2016, 15-04-2017, 09-04-2018 submitted by the petitioners, in view of the order/direction dated 30.11.2016, passed by this Hon'ble Court, and which are still pending for consideration.

A perusal of the record shows that this Court had passed, inter alia, following order on 30.11.2016 in Writ C No. 56701 of 2016;

"In this view of the matter, since equally efficacious alternative remedy is available to the petitioner, we dispose of the writ petition with a direction to the petitioner to deposit Rs. 2,00,000/- within two weeks from today, and approach concerned authorities raising all the objections taken in the writ petition in the form of a representation along with a copy of the writ petition. On deposit of token money, the electricity connection shall be restored and the concerned authorities shall decide the representation by passing a reasoned order after affording opportunity of hearing to the petitioner as to whether unauthorised use of electricity by the petitioner is established or not, and if the unauthorised use of electricity is found established, the concerned authority shall pass a final assessment order. The final assessment shall be made for entire period during which such unauthorised use of electricity has taken place subject to limitation provided under Clause 6.8(c)(iii) of the

Electricity Code, 2005. If aggrieved from the final order, the petitioner may prefer an appeal within 30 days of the order, as provided under Section 127 read with Clause 6.8(d) of U.P. Electricity Supply Code, 2005."

Learned counsel for the parties have admitted that till date no final order has been passed in the matter although the petitioner has deposited Rs. 2 lacs in pursuance of the order of this Court dated 30.11.2016 passed in the aforesaid writ petition.

Heard learned counsel for the parties and perused the record.

Considering the facts and circumstances of the case, the petitioner is directed to appear on 17.9.2018 at 11 A.M. before the Respondent No. 2 along with his representation/objection and adduce any evidence, if any, in support of his contention. The Respondent No. 2, thereafter, shall pass the final order within 45 days by a speaking order after considering the representations/objections of the petitioners as well as the contention raised by the petitioners.

For a period of 45 days from today or till the disposal of the representations/objections, whichever is earlier, no coercive action shall be taken against the petitioners.

With this observation, this writ petition stands disposed of.

Order Date :- 5.9.2018

vinay